

Prevention and Protection from Sexual Harassment at Work in the Czech Republic

Executive Summary of National Report on Legal Framework and Judicial Practice



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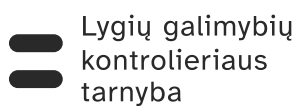


Table of Contents

1. Regulation of sexual harassment in Czech legislation	6
1.1 Definition of sexual harassment	6
1.2 Employer’s responsibilities	8
1.3 Possible remedies	9
2. Implementation of the legal framework in judicial practice and by public institutions	12
2.1 Analysis of common courts’ case law for 2015–2024	12
2.2 Analysis of complaints to the Ombudsman and the Labour Inspectorate for 2015–2024	14
3. Summary of the reserach findings	21
4. Recommendations	22



1. Regulation of sexual harassment in Czech legislation

1.1 Definition of sexual harassment

1.1.1 Anti-Discrimination Act¹

The **Anti-Discrimination Act** prohibits discrimination in areas defined therein (including work and employment)². It lays down the basic definitions of discrimination and of related terms.

The Act provides that **harassment means undesirable conduct** related to a protected characteristic³

- a) “that is aimed at or results⁴ in diminishing the dignity of a person and creating an intimidating, hostile, humiliating or offensive environment, or
- b) that could be justifiably perceived as a precondition of a decision affecting the exercise of rights and performance of duties following from the legal relationships.”⁵

Where harassment is sexual in nature, it constitutes discrimination in the form of **sexual harassment**.⁶

6

1.1.2 Labour Code

The Labour Code requires employers to ensure equal treatment of all employees.⁸ In addition, it contains an open-ended list of protected characteristics beyond those set out in the Anti-Discrimination Act.⁹

The Labour Code does not contain a separate definition of sexual harassment. Instead, it refers to the Anti-Discrimination Act for the interpretation of the concept of sexual harassment.¹⁰

1. Act No. 198/2009 Coll., on equal treatment and legal remedies for protection against discrimination.

2. Section 1 (1) of the Anti-Discrimination Act.

3. These characteristics include race, ethnic origin, nationality (in the sense of “national origin”), sex/gender, sexual orientation, age, disability, religion, belief and worldview. In the area of free movement of workers, they also include nationality (State citizenship).

4. The Act provides that the diminishing of dignity must be what the given conduct “is aimed at or [what it] results in”. The motivation of the person committing harassment is thus completely irrelevant in assessing whether the conduct constituted sexual harassment.

5. Section 4 (1) of the Anti-Discrimination Act.

6. Section 4 (2) of the Anti-Discrimination Act.

7. Act No. 262/2006 Coll., the Labour Code

8. Section 16 (1) of the Labour Code.

9. It also prohibits, for example, discrimination on the grounds of language, health, property, marital status and trade union membership.

10. Section 16 (3) of the Labour Code

1.1.3 Other statutory law

The **Civil Service Act**¹¹ refers to the regulation of discrimination enshrined in the Labour Code without any further specification¹².

Specific definitions of sexual harassment are given in the **Security Corps Service Relationship Act**¹³ and the **Professional Soldiers Act**¹⁴. These definitions are similar in content to the definition set out in the Anti-Discrimination Act.

1.1.4 Criminal Code¹⁵

Unlike some other European countries, the Czech Republic's Criminal Code **does not define the concept of sexual harassment**. However, some of the more serious forms of sexual harassment under the Anti-Discrimination Act may also meet the criteria of certain crimes, especially crimes against human dignity in the sexual sphere.¹⁶

1.1.5 Transnational and international standards

Many European countries have adopted transnational documents and conventions relating to sexual harassment. These include, in particular, the **Council of Europe Convention on Preventing and Combating Violence Against Women and Domestic Violence**. At the UN level, this is the **Convention on Eliminating Violence and Harassment in the World of Work**¹⁷.

However, as at the date of this document, the Czech Republic **has yet to ratify** any of these conventions.

7

1.1.6 Definition of sexual harassment in the Ombudsman's practice

Since the legislation itself comprises a relatively brief definition of harassment, the Ombudsman further specifies this concept in practice.

Inappropriate nature

To meet the legal definition of (sexual) harassment, the conduct in question must be socially undesirable. It is therefore necessary for the conduct to be inappropriate from both an objective and a subjective point of view.

- **The objective aspect** determines whether it can be reasonably assumed that other people in the victim's position would consider the behaviour undesirable.
- **The subjective aspect** determines whether the victim themselves perceived the conduct as undesirable (i.e. unwanted). This can be difficult to prove in situations where the person concerned is not free to express dissent, whether because of paralysis or fear of reprisal.

11. Act No. 234/2014 Coll., on public service.

12. Section 98 of the Civil Service Act

13. Act No. 361/2003 Coll., on the service relationship of the members of the security corps.

14. Act No. 221/1999 Coll., on professional soldiers.

15. Act No. 40/2009 Coll., the Criminal Code.

16. Part Two, Title III of the Criminal Code.

17. International Labour Organisation (ILO) Convention No. 190.

Intensity

Another criterion is the intensity of violation of human dignity. This criterion can be fulfilled in two ways.

- Harassment can be a violation of dignity that lasts for **a short period** of time or is even of **a one-off nature**, provided that it is highly intense.
- On the other hand, a less intense interference can amount to harassment if it lasts for **a longer period of time or is repeated**. Harassment more often consists of multiple actions which – in their totality and over a certain period of time – form an adverse environment.

1.2 Employer's responsibilities

If the employer is aware of sexual harassment and fails to take steps to prevent such conduct, the employer incurs liability in this regard.¹⁸

Equal treatment and safe working conditions

Employers are required to prevent any discriminatory conduct. Specifically, the Labour Code lays down the employers' obligation to:

- ensure equal treatment of all employees¹⁹
- create suitable working conditions²⁰
- ensure safe conditions which do not endanger health²¹

8

Alongside the employer, senior employees are also required under the Labour Code to create favourable working conditions. The duty to ensure equal treatment is defined in such a way that its fulfilment requires **an active approach on the part of the employer**.²³

Obligation to address complaints

The obligation to ensure equal treatment implies, among other things, that employers must address any complaints. The Labour Code also explicitly states that employees have the right to have their complaints discussed by the employer.²⁴ Breach of this obligation is an administrative infraction for which the employer may be fined up to CZK 400 000.²⁵

18. In this section, we follow from the regulation enshrined in the Labour Code. However, similar obligations are also laid down in other legislation.

19. Section 16 of the Labour Code.

20. Section 38 of the Labour Code.

21. Section 102 of the Labour Code.

22. Section 302 (c) of the Labour Code.

23. Section 5 (2) of the Anti-Discrimination Act.

24. Section 276 of the Labour Code.

25. Section 24 (1)(d) and (2)(b) of Act No. 251/2005 Coll., on labour inspection.

Victimisation

The Act defines victimisation as unfavourable treatment, punishment or placing at a disadvantage in consequence of the exercise of rights under the Anti-Discrimination Act.²⁶ This means that if an employee objects to discrimination, the employer may not penalise them in any way in this regard. Victimisation is one of the forms of discrimination.

Attributability of sexual harassment to the employer

Employers are liable for any unequal treatment related to the performance of work duties. Such liability arises if:

- the harasser represents the employer *vis-à-vis* the victim (e.g. a senior employee, an employee of the HR department, a member of the governing body), or
- the harassment occurs exclusively or mostly in the workplace, during working hours and in connection with the performance of work, and an employer's representative becomes aware of the conduct.²⁷

1.3 Possible remedies

1.3.1 Court action

By means of an action filed under the Anti-Discrimination Act, the plaintiff may claim:

- refrainment from the discrimination;
- removal of the consequences of the discriminatory interference;
- reasonable satisfaction (most commonly an apology for the discrimination);
- financial compensation for intangible damage.²⁸

However, discrimination may also be claimed in other types of lawsuit (e.g. an action for declaring termination of employment invalid).

Financial compensation for intangible damage

According to the Act, financial compensation for intangible damage is possible if remedy in the form of refrainment from the discrimination, removal of the consequences of discrimination and reasonable satisfaction (typically in the form of an apology) are insufficient.²⁹ A reason for awarding financial compensation for intangible damage may be especially the fact that a person's reputation, dignity or respect in society have been seriously harmed as a result of the discrimination.

However, this regulation enshrined in the Anti-Discrimination Act does not fully correspond to the EU directives. These require that sanctions for discrimination be effective, proportionate

26. Section 4 (3) of the Anti-Discrimination Act. The prohibition of treating an employee unfavourably for exercising their rights is enshrined in Section 346b (4) of the Labour Code.

27. More detailed definition of the attributability (imputability) of harassment to the employer must be determined by the courts in the future.

28. Section 10 (1) of the Anti-Discrimination Act.

29. Section 10 (2) of the Anti-Discrimination Act.

and dissuasive.³⁰ Courts therefore occasionally deviate from the interpretation of the Anti-Discrimination Act and, in some cases, treat financial compensation as a form of reasonable satisfaction.³¹

Shared burden of proof

The burden of proof in civil disputes lies generally with the plaintiff. Given the specific nature of unequal treatment, the law recognises the principle of **shared burden of proof**.

The law states that if the plaintiff asserts in court certain facts that indicate the existence of direct or indirect discrimination on the basis of sex/gender in employment and occupation on the part of the defendant, the defendant is required to prove that the principle of equal treatment was not violated.³² Hence, the plaintiff must not only assert, but has to also prove that they were indeed treated in a discriminatory manner. It is then up to the employer to refute that the unequal treatment was motivated by this protected characteristic.³³

Where a victim of sexual harassment seeks a remedy through court proceedings, it may be difficult for them to prove the facts of the case. It is therefore questionable how effective the sharing of the burden of proof can be in sexual harassment proceedings.

1.3.2 Ombudsman

Methodological assistance

10

The Ombudsman (the Public Defender of Rights) primarily **provides methodological assistance**³⁴ in the area of protection against discrimination. Within this assistance, he can decide to **assess the discrimination claim** raised in the given case. This means that the Ombudsman will collect underlying documents from the complainant and then contact the employer with questions. On the basis of information provided by both parties to the dispute, the Ombudsman will then conclude whether he considers the discrimination proven and provide the complainant with further support, especially in case of a potential court action.

- An advantage of providing methodological assistance is the relative informality of communication with the complainant, enabling the Ombudsman to advise a broad range of individuals and adapt to their needs.
- However, employers are not required to co-operate with the Ombudsman. Should they refuse to do so, the Ombudsman has no means of obtaining information necessary to formulate a conclusion.³⁵

30. Article 15 of the Race Equality Directive; similarly in Article 17 of the Framework Directive and Article 8d of the Gender Directive.

31. Discrimination in the Czech Republic: Victims of Discrimination and Obstacles Hindering their Access to Justice. Final report on a survey conducted by the Public Defender of Rights. Available (in Czech) at: https://www.ochrance.cz/uploads-import/ESO/CZ_Diskriminace_v_CR_vyzkum_01.pdf

32. Section 133a of Act No. 99/1963 Coll., the Code of Civil Procedure.

33. Judgment of the Constitutional Court of 30 April 2009, File No. II. ÚS 1609/08, available (in Czech) at: <https://nalus.usoud.cz>

34. Section 21d (1)(a) of Act No. 349/1999 Coll., on the Public Defender of Rights and on the Defender of Children's Rights.

35. This weakness in the Ombudsman's ability to provide victims with an effective defence against discrimination could be at least partially remedied in the near future within transposition of the directives on standards for equality bodies (Directive (EU) 2024/1499 and Directive (EU) 2024/1500).

- If the Ombudsman is unable to conclude – on the basis of information provided by both parties – whether, in his opinion, discrimination has occurred, he will close the assessment as “discrimination not proven” for lack of evidence. If, in his view, there was no discrimination, he will conclude the assessment as “no discrimination found”.
- The Ombudsman may not order an employer to take remedial measures. However, the Ombudsman’s practice shows that if he recommends some form of remedy, some employers will take action even on a voluntary basis.

Inquiry into the Inspectorate’s actions

The Ombudsman supervises the work of the authorities³⁶ and can thus **inquire into actions taken** by the Inspectorate. If the Ombudsman finds a breach of the Inspectorate’s obligations, he can seek redress,³⁷ most often in the form of a follow-up inquiry or repeated inspection.

1.3.3 Labour Inspectorate

The Inspectorate checks compliance with the employers’ duties. It also imposes measures to remedy any shortcomings identified. The Inspectorate may impose a fine on the employer for offences committed through such misconduct.³⁸

Inspections at employers

The Inspectorate itself decides whether to carry out an inspection on the basis of a written complaint. If it decides to proceed with an inspection, it must inform the complainant in writing of its result. Otherwise, it should notify the complainant that an inspection will not be carried out and give reasons for this decision.

11

Waiver of confidentiality

The Inspectorate is required to determine the facts of the case to such an extent that no justified doubts remain in this regard.³⁹ At the same time, however, it must not jeopardise the complainant’s interests by revealing to the inspected entity who made the complaint.⁴⁰

If the complainant does not waive the duty to maintain confidentiality,⁴¹ the Inspectorate must take care not to disclose the complainant’s identity. The Inspectorate is therefore required to inform the complainant in a comprehensible manner about the possibility of waiving confidentiality and the consequences of such a decision.⁴² If the complainant waives the Inspectorate’s confidentiality duty, inspectors may ask open questions and directly determine the circumstances of the complaint. This will generally make the inspection more effective.⁴³

36. Pursuant to Section 1a (1)(b) of the Public Defender of Rights Act.

37. Section 18 of the Public Defender of Rights Act.

38. Part Four of the Labour Inspection Act. A fine of up to CZK 1,000,000 may be imposed by the Inspectorate for infractions in the area of equal treatment.

39. Section 3 of Act No. 500/2004 Coll., the Administrative Code.

40. Section 20 (1) of Act No. 255/2012 Coll., the Inspection Code.

41. Section 20 (3) of the Inspection Code.

42. Ombudsman’s report of 31 August 2016, File No. 3496/2015/VOP, available (in Czech) at: <https://www.ochrance.cz/uploads-import/ESO/3496-2015-VOP-VP-Z18.pdf>

43. The Ombudsman has long advocated that, even in cases where the complainant waives the duty to maintain confidentiality, the Inspectorate should proceed cautiously and evaluate the risk of the complainant being penalised by the employer. See the Ombudsman’s final statement of 4 September 2018, File No. 4084/2016/VOP, available (in Czech) at: <https://eso.ochrance.cz/Nalezene/Edit/8090>

2. Implementation of the legal framework in judicial practice and by public institutions

2.1 Analysis of common courts' case law for 2015–2024

2.1.1 Number of sexual harassment actions

The Ombudsman regularly monitors court decisions in the area of discrimination. In 2020, he published a survey of anti-discrimination case law for 2015–2019.⁴⁴ Out of the total of 90 actions, two were aimed against sexual harassment. In 2026, the Ombudsman plans to publish a survey of anti-discrimination case law for the years 2020–2024. Out of the total of 107 actions, not a single one was aimed to defend the plaintiff against sexual harassment.

In the period under review, i.e. 2015–2024, the courts ruled on only two discrimination actions concerning sexual harassment.

It can be assumed that not all anti-discrimination lawsuits filed with the courts actually reached the Ombudsman. There is no single database from which all court decisions could be obtained.⁴⁵

It can nevertheless be noted that victims of workplace sexual harassment very rarely bring their claims before the courts. It would be useful to determine the specific reasons through further, primarily qualitative survey methods.

12

- The survey shows that courts generally do not award large sums of money to victims of discrimination as financial compensation for intangible damage. The compensation awarded is most often in the tens of thousands, or in the lower hundreds of thousands at most.
- However, discrimination disputes are often very long, which owes to the fact that the cases return to lower instances after an intervention by superior courts.
- The risks of an unsuccessful court dispute thus also include considerable sums expended on the lawsuit as such, especially the costs of legal representation. In addition, if unsuccessful in the dispute, the plaintiff may be ordered by the court to reimburse the employer for the costs incurred in the proceedings.

44. Discrimination in the Czech Republic: Victims of Discrimination and Obstacles Hindering their Access to Justice. Final report on a survey conducted by the Public Defender of Rights. Available (in Czech) at: https://www.ochrance.cz/uploads-import/ESO/CZ_Diskriminace_v_CR_vyzkum_01.pdf.

45. The Ombudsman's analysis is thus based on decisions provided by the courts themselves. In some cases, however, the Ombudsman became aware from other sources of decisions that had not been sent by the courts. It therefore cannot be ruled out that more actions concerning sexual harassment were filed during the period under review than were available for our analysis.

2.1.2 Summary of anti-discrimination actions regarding sexual harassment

Harassment of a female member of the Fire Rescue Service

The plaintiff sued her employer who failed to take steps against harassing conduct on the part of her direct superior. The latter allegedly pushed for three years for the plaintiff's dismissal, ridiculed her personal relationship with another man, pressed her to end this relationship, and questioned her moral and professional qualities. In her lawsuit, **she requested publication of an apology and payment of financial compensation for intangible damage in the amount of CZK 150 000 (EUR 5 828).**

While the district court dismissed the action (because the relevant acts had not been proven), the **regional court** changed the first-instance judgement and **granted the relief sought** (relying particularly on the testimonies of the plaintiff's former colleague and of a psychologist). Based on an enforceable judgement of the regional court of 2010, the former employer paid financial compensation in the claimed amount, but did not apologise to the plaintiff. **The Supreme Court subsequently cancelled all the judgements** on grounds of defects in application of Section 133a of the Code of Civil Procedure. The plaintiff then withdrew her anti-discrimination suit.

Based on the unique circumstances of the case, the court did not grant compensation of the costs of the proceedings.⁴⁶

The regional court awarded the plaintiff full compensation for intangible damage in the amount of CZK 150,000. The court argued that primary satisfaction in the form of an apology could not fully serve its purpose. The plaintiff was affected by the withdrawal of personal evaluation or bonuses in the order of tens of thousands of crowns. The court therefore considered it appropriate to award compensation for intangible damage in a comparable order of magnitude, while ensuring that the amount would also motivate the employer to prevent recurrence of the situation.

The question of how the courts should work with the institution of the shared burden of proof was also important in this case. This institution is intended to help victims of discrimination, who generally find it very difficult to prove that their employer's unfavourable treatment was motivated by one of the protected characteristics. In the case at hand, however, the regional court acted with undue leniency towards the plaintiff. According to the Supreme Court, the regional court accepted the plaintiff's allegation of unequal treatment without the plaintiff having sufficiently proved this fact. Ultimately, the Supreme Court quashed both previous decisions. The complainant then decided not to pursue the dispute.

46. Judgement of the District Court in Pardubice of 12 March 2008, Ref. No. 8 C 373/2006-107; resolution of the Regional Court in Hradec Králové of 2 October 2008, Ref. No. 23 Co 327/2008-132; judgement of the District Court in Pardubice of 30 March 2009, Ref. No. 8C 373/2006-308; judgement of the Regional Court in Hradec Králové of 27 October 2010, Ref. No. 23 Co 282/2009-397; judgement of the Supreme Court of 29 May 2013, File No. 21 Cdo 867/2011; resolution of the District Court in Pardubice of 30 September 2013, Ref. No. 8 C 373/2006-455; resolution of the Regional Court in Hradec Králové of 31 March 2014, Ref. No. 23 Co 105/2014-465; resolution of the Supreme Court of 9 October 2015, File No. 21 Cdo 962/2015; resolution of the Regional Court in Hradec Králové of 30 December 2015, Ref. No. 21 Co 105/2014-507; resolution of the Supreme Court of 3 November 2016, File No. 21 Cdo 2993/2016. The case fell into the period under review due to a series of court orders relating to legal costs. The dispute as such therefore ended only in 2016. However, the original judgements in rem are older. The courts thus assessed the case according to the legislation preceding the adoption of the Anti-Discrimination Act.

Sending pornography at the workplace

The (female) plaintiff's direct superior allegedly engaged in sexual harassment (by sending e-mails with pornography, MMS messages with images of his genitals) and subsequently treated the plaintiff unequally (by revoking consent to her secondary gainful activities, checking her attendance, reducing her personal extra pay) with the aim to force her out of her job.

The courts determined that the two employees of the defendant had a special relationship in the period from 2005 to 2008, which had sexual overtones, but based on consent. The turning point was said to have occurred in 2009, although the courts were unable to establish the cause of the conflict with certainty. The conflict led to deterioration of the situation at the workplace and a complaint, which the employer failed to properly address.

The regional court concluded that the plaintiff's direct superior had lost control of the situation and the defendant as the employer had failed to appropriately intervene. **The court therefore granted the plaintiff an apology and financial compensation for intangible damage, in the amount of CZK 50 000 (EUR 1 943).** However, the court did not grant an additional CZK 50,000 as part of reasonable satisfaction. The employer was also required to pay the outstanding amount of the plaintiff's sickness benefits of CZK 6 336 (EUR 246) and pay a fine to the State in the amount of CZK 80 000 (EUR 3 108) imposed by the labour inspectorate for an infraction consisting in failure to deal with a complaint against bossing.

The courts did not grant the costs of the proceedings to any of the parties.⁴⁷

14

According to the court, it was the plaintiff's superior who should have been aware of all the risks involved in attempting to establish a closer relationship at the workplace, especially between a superior and a subordinate. It was therefore his responsibility to ensure that personal sympathies or resulting antipathies were not reflected in working relationships in any way. Similarly, the court held that the authority's secretary should have examined the matter more thoroughly and taken appropriate steps to calm and normalise the situation.

2.2 Analysis of complaints to the Ombudsman and the Labour Inspectorate for 2015–2024

2.2.1 Analysis of complaints submitted to the Ombudsman⁴⁸

The analysis includes **16 complaints**; in two instances, the Ombudsman was contacted more than once by the same persons in relation to the same case. These were, however, treated as separate complaints because they were submitted during different periods and handled separately.

47. Judgement of the District Court in Rakovník of 29 January 2014, Ref. No. 9 C 132/2009-954; judgement of the Regional Court in Prague of 17 March 2015, Ref. No. 23 Co 229/2014-1079; resolution of the District Court in Rakovník of 23 September 2015, Ref. No. 9 C 132/2009-1132; resolution of the Regional Court in Prague of 30 December 2015, Ref. No. 23 Co 393/2015-1148. Here, too, the action was brought before the Anti-Discrimination Act entered into force. Although the court decisions in this case may provide some guidance for other cases and already refer to the Anti-Discrimination Act, it is questionable to what extent they remain relevant to current judicial practice.

48. The full version of the analysis, including charts, is available in Czech.

The Ombudsman does not systematically record all cases in which complainants allege discrimination in the form of sexual harassment in employment. Thus, there may have been additional complaints submitted to the Ombudsman in which information concerning sexual harassment emerged only in the course of further communication or among a number of other issues.

Part of the data analysed relies on allegations made by the complainants in their complaints and possible further supplements. This data is therefore based on the subjective view of the person who decided to approach the Ombudsman.

Victim

- The vast majority of cases (94%) involved women; only one victim was a man.
- We were able to determine the **age** of the victims from the files in only five cases. The individuals concerned were aged 25, 35, 42, 43 and 51.
- As regards the **sectors** involved, the complainants were employed in services, industry, public administration and local government. Most complaints (4) were filed by employees in the education sector.
- The victim was most frequently (75%) an individual. More than one person was involved in 25% of cases.
- Almost two thirds (62%) of cases concerned victims with an additional protected characteristic.⁴⁹ Age (50%) was the most prevalent characteristic, followed by nationality (in the sense of “national origin”) (30%), disability (20%), gender identification (10%) and ethnicity (10%).

15

Form of sexual harassment

- Complainants most frequently (81%) reported verbal harassment. Physical harassment was alleged by complainants in a quarter (25%) of cases; other forms were described by almost one half (44%) of the complainants; in two cases (13%), it was not clear from the complaint what form of sexual harassment was involved.
- Inappropriate comments predominated (79%), ranging from inappropriate compliments to swearing and insults. There were also inappropriate suggestions (50%) and inappropriate questions (36%).
- Other forms included unsolicited graphic material (21%), such as the sharing of explicit photos or the installation of erotic images on a computer desktop. Complainants also reported inappropriate looks (14%), groping (14%), “quid pro quo” pressure (7%) and explicit workplace conversations perceived by the victim as inappropriate (7%).

Harasser

- More than two thirds (69%) were the victims’ peers within the work hierarchy. Half of the cases (50%) involved superiors. None of the harassers was subordinate to the victim in the work hierarchy.

49. As defined in the Anti-Discrimination Act.

- In almost two thirds of cases (62%), complainants reported that multiple harassers had been involved simultaneously.

Other forms of unequal treatment

- In almost one third (31%) of cases, complainants reported that their employer retaliated against them in various ways after they had defended themselves against the conduct in question.⁵⁰
- Retaliatory measures took various forms. They were both less specific (pressure, escalation of bullying and incitement of other people to such conduct) and more specific (e.g. decision not to extend the employment contract, removal of specific job responsibilities, transfer to night shifts, reassignment to another workplace accompanied by the withdrawal of bonuses or reduction in personal bonuses).
- Almost all (94%) victims also experienced other forms of unequal treatment, in addition to sexual harassment.⁵¹ Non-sexual harassment was the most common (87%), followed by bullying (40%), unequal treatment in terms of pay (33%) and termination of employment (13%). More than half of the complainants (53%) also reported other forms of unequal treatment, which we were unable to categorise.

Addressing the situation with the employer

- Almost all the complainants (94%) contacted their employer in an attempt to address the situation.
- Victims most frequently (80%) contacted their superiors within the workplace. Almost half (47%) reported the matter to a person or body superior to the workplace (top company management, founder or superior body). One third (33%) of the victims contacted the HR department, and one stated they had also contacted the trade union.

Ombudsman's procedure

- In more than two thirds (69%) of cases, the Ombudsman provided methodological assistance without contacting the employer and assessing the discrimination claim; in almost one third (31%), he provided methodological assistance including an assessment of the discrimination claim; and once he investigated the Inspectorate's procedure.⁵²
- Of the cases in which the Ombudsman examined the discrimination claim, discrimination was found in almost two thirds of the cases (60%), was not found in one case, and was not proven in a further almost two thirds of the cases (60%).
- In cases where the Ombudsman found discrimination, two involved discrimination in the form of sexual harassment, one of which also involved victimisation. While sexual harassment could not be proven in one case, the Ombudsman found victimisation related to the victim's defence against the alleged sexual harassment, as well as harassment on the grounds of age.

50. The Anti-Discrimination Act calls such retaliation victimisation. Victimisation is unfavourable treatment, punishment or disadvantage occurring after the victim of discrimination has decided to defend themselves against such conduct. This is one of the forms of prohibited discrimination.

51. This category does not include unequal treatment in the form of victimisation, see above.

52. For the Ombudsman's options, see section 3.2 of this document.

The outcome of the assessment of the discrimination claim shows a significant weakness in the Ombudsman's ability to prove the presence of sexual harassment. Indeed, in three cases, he was unable to gather sufficient information to confirm with certainty whether or not sexual harassment had occurred in his opinion.

The Ombudsman was able to prove sexual harassment in one case as the incident was reported to the Ombudsman by the employer itself.⁵³ In the second case, the Ombudsman reached this conclusion based on statements of two other persons who had confirmed the harasser's conduct.⁵⁴ However, the Ombudsman rarely relies on statements of persons other than the employer when assessing a claim of discrimination.

Inquiry into the Inspectorate's actions

- In one case, the Ombudsman inquired into the Inspectorate's actions and misconduct relating to the investigation of sexual harassment.⁵⁵
- In the case at hand, the Ombudsman concluded that the **Inspectorate erred by not informing the complainant clearly about the possibility of waiving confidentiality**, which led to a limited extent of inspection and could have influenced its conclusions.

The complaint indicated a suspicion of discriminatory conduct committed by the employer and by the complainant's colleague. The Inspectorate correctly evaluated the complaint and carried out an inspection at the employer. As part of the inspection, it verified relevant written documents and asked selected staff to answer questions without the presence of other persons and to complete questionnaires. This procedure was aimed at verifying the existence of unfavourable treatment, bullying and sexual harassment in the workplace. However, none of the employees interviewed confirmed that they had ever witnessed such behaviour.

As the complainant had not waived the inspectors' confidentiality duty, the inspection could not focus directly on the way the complainant had been treated and on their position in the work team, as targeted questions would have revealed the complainant's identity. However, in cases where workplace bullying or outright sexual harassment is alleged, it is not possible to conduct an effective check without revealing the identity of the complainant. It is therefore of the utmost importance that the complainant be clearly informed of the possibility to waive confidentiality.

In this respect, however, the Ombudsman considered that the Inspectorate had erred, since its advice concerning the possibility of waiving confidentiality had not been formulated clearly, and the complainant had therefore been unable to make a fully informed decision. In their complaint to the Labour Inspectorate, the complainant stated that the employment relationship had already ended, so the complainant was not in as vulnerable a position vis-à-vis their employer as if the employment had still existed.

This circumstance affected the course of the inspection and could also have influenced its outcome. Hence, the Ombudsman concluded that the Labour Inspectorate had erred by acting contrary to the principles of good governance, namely the principle of efficiency and responsiveness of public administration.⁵⁶

53. Ombudsman's report of 18 March 2024, File No. 1108/2023/VOP, available (in Czech) at: <https://eso.ochrance.cz/Nalezene/Edit/12880>

54. Ombudsman's report of 6 April 2017, File No. 2569/2016/VOP, available (in Czech) at: <https://eso.ochrance.cz/Nalezene/Edit/4958>

55. Ombudsman's report of 31 August 2016, File No. 3496/2015/VOP, available (in Czech) at: <https://www.ochrance.cz/uploads-import/ESO/3496-2015-VOP-VP-Z18.pdf>

56. The Public Defender of Rights. Principles of good governance, available (in Czech) at: <https://www.ochrance.cz/dokument/principy-dobre-spravy/>

2.2.2 Analysis of complaints to the Labour Inspectorate⁵⁷

The analysis includes **nine complaints**; one of the cases involves two complaints followed by the same inspection (the complainants had filed complaints against each other).

The Inspectorate does not systematically record all cases in which complainants allege discrimination in the form of sexual harassment in employment. It can be assumed that the total number of complaints to the Inspectorate concerning at least partially sexual harassment was actually higher.⁵⁸

As in the case of complaints to the Ombudsman, we base this section on allegations made by the complainants in the complaints provided to us. Part of the data is therefore based on the subjective view of the person who decided to contact the Inspectorate. In addition, in this section, we rely only on complaints provided by the Inspectorate, not on possible later supplements that may have contained further details.

Victim

- In two thirds (67%) of cases, the victims were exclusively women. In two (22%) cases, there were several victims, including both women and men. A single case (11%) involved solely a man.
- We were able to identify the **age** of the victims in only four cases. These were individuals aged 26, 28 and 43 and there was also a case concerning four individuals aged 37, 40, 56 and 56.
- As regards the **sectors** concerned, more than half (56%) of the victims worked in industry, two (22%) in culture, one in education (11%) and one in health (11%).
- In one third (33%) of cases, the victim was an individual. More than one person was involved in two thirds (67%) of cases.
- We identified further protected characteristics in respect of one third (33%) of victims;⁵⁹ in case of two thirds (67%), no such additional characteristics were apparent from the complaint.

Age was the predominant characteristic, relevant for two (67%) of the victims, and one (33%) was a protected characteristic of nationality (in the sense of “*national origin*”).

Form of sexual harassment

- More than three quarters (78%) of victims reported that they had experienced verbal harassment, while one third (33%) complained about physical or other harassment.

57. The full version of the analysis, including charts, is available in Czech.

58. During the period under review, the Inspectorate shared with us a selection of complaints in which complainants had raised concerns about sexual harassment in the workplace; this underlying material was prepared in anonymised form with a view to preparing training for inspectors. Only a portion of these complaints matched the ones provided to us by the Inspectorate for this analysis in February 2026. The Inspectorate stated that it kept records of all complaints received by inspection area, i.e. such complaints would fall under the equal treatment section, but its information system did not allow for a more detailed breakdown. It can thus be assumed that the total number of complaints in which the complainants reported sexual harassment to the Inspectorate was actually higher than the Inspectorate was able to track.

59. We defined the protected characteristics in accordance with the Anti-Discrimination Act.

- In terms of the specific form of sexual harassment, complainants mentioned inappropriate comments, questions, workplace conversations and jokes. Two alleged inappropriate proposals. Inappropriate looks, sharing of unsolicited graphic materials and stalking were also indicated by the complainants.

Harasser

- In more than half (56%) of cases, the harassers were the victim's superiors. More than a fifth (22%) were the victims' peers within the work hierarchy. One (11%) of the harassers was subordinate to the victim in the work hierarchy.
- More than two thirds (67%) were individuals; multiple persons were involved in one fifth (22%) of cases. In one case (11%), it was not clear from the information provided how many harassers were involved.

Other forms of unequal treatment

- More than three quarters (78%) of the complainants stated that the employer had not retaliated against them. On the other hand, over a fifth (22%) mentioned some form of retaliation.⁶⁰
- The victimisation consisted in removal from the position of deputy, withdrawal of responsibility for a speech therapy club, reduction in performance bonuses, escalating bullying and encouraging other persons to engage in such conduct, as well as termination of employment.
- More than three quarters (78%) also experienced other forms of unequal treatment.
- Bullying dominated (86%) in this regard; more than half (57%) of the complainants reported harassment (without sexual nature), and one person experienced unequal treatment in the area of pay and termination of employment.

19

Addressing the situation with the employer

- More than three quarters (78%) of victims turned to their employer in an attempt to address the situation; this was not apparent for the rest.
- Most often (71%), they contacted their superiors at the given workplace or (43%) a person or body superior to the workplace (top company management, founder or superior body). One victim (14%) complained to the trade union. One (14%) person chose a different approach and proposed establishing a code of ethics.

Procedure of the Labour Inspectorate

- In almost half (45%) of cases, the complainant waived the Inspectorate's duty of confidentiality.⁶¹

60. The Anti-Discrimination Act calls such retaliation victimisation. Victimisation is unfavourable treatment, punishment or disadvantage occurring after the victim of discrimination has decided to defend themselves against such conduct. This is one of the forms of prohibited discrimination.

61. See section 3.3 of this document for more information on the possibility to waive the Inspectorate's confidentiality duty.

- The Labour Inspectorate **did not find sexual harassment in any of the cases**.⁶²
- The Labour Inspectorate found only one other case of misconduct concerning equal treatment. Specifically, this concerned a breach of the senior employee's duty to create favourable working conditions,⁶³ consisting in two-way communication between the director and two specific employees. However, this misconduct was not linked to any specific form of discrimination or protected characteristic on the part of the employee.

We had to omit one case in which the Inspectorate found sexual harassment from the data we processed. This was a case in which the inspectorate decided to carry out a follow-up investigation after the initial result of an inspection which took place in 2023. The final assessment was only issued in 2025, i.e. outside the period under review.

In this case, the Inspectorate took a highly sensitive approach to the concept of sexual harassment. The law defines sexual harassment as conduct that leads to diminishing a person's dignity and creating a hostile and humiliating environment.

In the case at hand, the Inspectorate assessed the situation captured by the complainant in photographs, which the persons depicted therein considered consensual. The Inspectorate concluded that such behaviour could create a hostile and humiliating atmosphere towards the complainant, who witnessed the behaviour in the workplace, despite the voluntary presence of the actors themselves. It therefore concluded that, in its opinion, this constituted sexual harassment in terms of the Anti-Discrimination Act.

The complainant alleged that she herself had been a victim of physical sexual harassment, and in a relatively serious form. However, the Inspectorate was unable to prove that the complainant was indeed a victim of sexual harassment directly targeted at her by the harasser.*

62. Possible reasons for this include, in particular, difficulties with adducing the necessary proof. Victims of sexual harassment themselves usually have very limited possibilities to obtain evidence of such inappropriate behaviour. Inspectorates must then be able to infer the employer's misconduct with a sufficient degree of certainty. This can be very challenging in situations where the employer and others in the workplace do not explicitly confirm that the conduct has taken place. These and other possible reasons would need to be verified by further, especially qualitative survey.

63. Pursuant to Section 302 (c) of the Labour Code.

3. Summary of the research findings

1. **According to information available to the Ombudsman, the courts dealt with only two cases in 2015–2024** where people filed an action against discrimination, including sexual harassment. However, it can be assumed that not all anti-discrimination lawsuits filed with the courts actually reached the Ombudsman.
2. The plaintiff succeeded in one of these cases; in the other one, the Supreme Court quashed the previous judgements and the plaintiff decided not to continue with the litigation. **The courts awarded costs in neither of these cases.**
3. Previous surveys by the Ombudsman show that **victims of discrimination only contact an authority in 11% of cases.** The Ombudsman does not yet have data specifically relating to sexual harassment.
4. **The Ombudsman and the Labour Inspectorate record only a few complaints relating to alleged sexual harassment in the workplace.** In 2015–2024, the Ombudsman dealt with 16 complaints and the Inspectorate carried out an inspection in respect of nine complaints of sexual harassment. However, since neither authority systematically keeps records of these complaints, the total number might have been higher.
5. **Many of the victims were also part of a vulnerable group.** In 62% of cases involving complaints submitted to the Ombudsman and in 33% of complaints submitted to the Inspectorate, it was also possible to identify an additional protected characteristic of the victim besides sex. Most often, this characteristic was age.
6. **People most frequently complained about verbal sexual harassment** (81% of complaints to the Ombudsman, 78% of complaints to the Inspectorate), especially inappropriate comments, inappropriate questions or inappropriate suggestions. Physical sexual harassment was also alleged (in 25% of complaints submitted to the Ombudsman and 33% of complaints submitted to the Inspectorate), along with other conduct that could not be classified within any of these categories (44% of complaints submitted to the Ombudsman and 33% of complaints submitted to the Inspectorate). In most cases, sexual harassment consisted of multiple actions.
7. **The Ombudsman provided methodological assistance in 11 cases.** In the remaining five cases, he considered the claim of discrimination. In **two of those cases, the Ombudsman concluded that, in his opinion, the conduct in question indeed constituted sexual harassment. In one case, he found discrimination in the form of victimisation** in relation to the victim's decision to defend themselves against (unproven) sexual harassment.
8. **The Inspectorate** carried out nine inspections and found no **sexual harassment in any of these cases.**
9. **Overall, the two authorities have thus far been largely unsuccessful in proving discrimination in the form of sexual harassment.**

4. Recommendations

Following the research findings, the Ombudsman recommended the following measures:

1. Train inspectors on the topic of sexual harassment and share examples of good practice in its investigation

Addressed to: State Labour Inspection Office

Achieving this objective will strengthen the Inspectorate's capacity to establish cases of workplace sexual harassment by increasing inspectors' sensitivity to the issue of sexual harassment, countering gender-based stereotypes that may accompany such cases, and sharing appropriate methods for effectively targeting workplace inspections.

2. Ensure that the Inspectorate has sufficient capacity to investigate complaints of unequal treatment, including sexual harassment in the workplace

Addressed to: Ministry of Labour and Social Affairs

Achieving this objective will extend the Inspectorate's capacity for thorough investigation of complaints of sexual harassment, taking into account the sensitivity of the issue and the time required for implementing effective methods of its investigation.

3. Ensure continued financial support for NGOs that provide legal counselling and support to victims of gender-based violence, including sexual harassment

22

Addressed to: Ministry of Labour and Social Affairs, Ministry of the Interior

Achieving this objective will extend the network of support for victims of sexual harassment so that they can seek appropriate and timely remedies.

4. Raise awareness among the general public regarding sexual harassment at work and employers' responsibilities in this area

Addressed to: Office of the Government of the Czech Republic

Achieving this objective will raise awareness of the substance of sexual harassment as a form of discrimination, of employers' responsibilities in this area and of legal remedies against sexual harassment in the workplace.

5. Submit an amendment to the Anti-Discrimination Act to eliminate the subsidiarity of financial compensation for intangible damage

Addressed to: Government of the Czech Republic

Achieving this objective will reinforce the position of plaintiffs who file an anti-discrimination action to defend themselves against sexual harassment and ensure that penalties for discrimination are effective and dissuasive, as required by the EU legislation.

6. Transpose properly and in due time Directives (EU) 2024/1499 and (EU) 2024/1500 on standards for equality bodies

Addressed to: Office of the Government of the Czech Republic

Achieving this objective will strengthen the Ombudsman's powers in the area of equal treatment and thus support victims of sexual harassment, including the competence to investigate private entities and provide the possibility out-of-court dispute resolution.

7. Publish all court decisions in a form accessible to the public

Addressed to: Ministry of Justice

Achieving this objective will enhance legal certainty for victims of sexual harassment and increase the lawyers' capacity to file anti-discrimination actions regarding sexual harassment.

Prevention and Protection from Sexual Harassment at Work in the Czech Republic.

Executive Summary of National Report on
Legal Framework and Judicial Practice.